

For the IAA:

The CIA considers all technical data developed using funds transferred to NIAID under this Interagency Agreement to be sensitive, but unclassified, with respect to National Security for the development of forensic attribution capabilities in bio-defense, and as such should not be used, modified, performed, displayed, released or disclosed, in whole or in part in any manner and for any purpose whatsoever without the CIA's permission. This information should be treated as For Official Use Only (FOUO). Accordingly, NIAID shall include the following clause in any contract for the development of technical data using CIA funds provided under this IAA. If a contractor refuses to accept this clause, or substantially similar terms, NIAID will promptly bring such refusal to the CIA's attention and will not proceed with the award of the contract without authorization of the CIA. NIAID will not authorize the contractor to use or disclose such data without the prior permission of the CIA. Unless required by law, regulation or court order, NIAID will not disclose such information in its possession or control without first seeking the CIA's permission. NIAID will make reasonable efforts to promptly inform the CIA of any request or requirement for disclosure.